

IN THE 14TH JUDICIAL CIRCUIT COURT FOR MUSKEGON COUNTY, MICHIGAN

HOA MI RETAIL HOMES, LLC,
a Delaware limited liability company,
Plaintiff,

v.

SHADY OAKS PARK MHP LLC, a Michigan limited liability company (active),
SHADY OAKS MHP LLC, a Michigan limited liability company (administratively dissolved),
HOMES OF AMERICA HOLDINGS LLC, a Delaware limited liability company,
PARTRIDGE SECURITIES LLC, a corporate alter ego/veil entity,
CT CORPORATION SYSTEM, as registered agent,
KIM DAVIS, as agent/manager,
DOES 1-50, as unknown corporate successors, assigns, or controlling affiliates,

Defendants.

Case No: 2025-0000000509-CZ
Hon. Kenneth S. Hoopes

AMENDED VERIFIED COMPLAINT FOR FRAUD, DECEPTIVE PRACTICE, RETALIATORY EVICTION, AND INJUNCTIVE RELIEF

INTRODUCTION

1. This action arises from an intentionally misleading and procedurally deceptive eviction carried out against Plaintiff by SHADY OAKS PARK MHP LLC, while operating as an undisclosed successor or agent of dissolved SHADY OAKS MHP LLC, under the management of HOMES OF AMERICA HOLDINGS LLC, through its employee KIM DAVIS.
 2. Defendants' actions included improper filings under the wrong legal entity, concealing active ownership and agency relationships, violating MCL 600.5775, and undermining due process through confusion of party identity.
 3. Plaintiff seeks to void the resulting eviction judgment, recover damages, and obtain injunctive relief against further enforcement or retaliatory action.
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PARTIES

1. Plaintiff, HOA MI RETAIL HOMES, LLC ("Plaintiff"), is a Delaware LLC operating in Michigan, and was the lawful owner and resident of a mobile home located at 1977 Whitehall Rd, Lot 17, Muskegon, MI 49445.
 2. Defendant SHADY OAKS PARK MHP LLC is an active Michigan LLC that filed and executed the eviction against Plaintiff.
 3. Defendant SHADY OAKS MHP LLC is a dissolved Michigan LLC with no lawful authority to operate or file litigation after February 15, 2023.
 4. Defendant HOMES OF AMERICA HOLDINGS LLC is a Delaware LLC that operates and controls the affairs of SHADY OAKS PARK MHP LLC and SHADY OAKS MHP LLC through employees such as KIM DAVIS.
 5. Defendant PARTRIDGE SECURITIES LLC is believed to hold ownership interests in the above entities and is used to obscure operational and financial liability.
 6. Defendant CT CORPORATION SYSTEM is the registered agent for HOMES OF AMERICA HOLDINGS LLC and SHADY OAKS PARK MHP LLC.
 7. Defendant KIM DAVIS is a managerial employee acting under HOMES OF AMERICA HOLDINGS LLC, and the signatory to coercive lease and eviction communications sent to Plaintiff in March 2024.
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JURISDICTION AND VENUE

1. This Court has jurisdiction under MCL 600.605.
 2. Venue is proper in Muskegon County under MCL 600.1621(a).
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GENERAL ALLEGATIONS

1. Plaintiff moved into Lot 17 of Shady Oaks in December 2023 and paid lot rent under the representation that SHADY OAKS PARK MHP LLC was the operating landlord.
2. In March 2024, Plaintiff was coerced into signing a lease presented by KIM DAVIS using an email address ending in @homesofamerica.com.
3. That lease listed SHADY OAKS PARK MHP LLC as landlord, yet was enforced through filings made by SHADY OAKS MHP LLC.

4. Plaintiff made multiple rental payments in July 2024 via MDHHS, True North, and Karen Rettig, totaling over \$1,100, but these were not reflected on any ledger until August 22, 2024.
 5. In February 2025, Defendants increased rent from \$695 to \$720 unilaterally and billed \$100+ in false water/sewer charges, despite known EGLE violations.
 6. Defendants then initiated eviction proceedings without providing ledgers, ignoring payments, and using the name SHADY OAKS PARK MHP LLC to prosecute the action.
 7. Eviction judgment was granted without Plaintiff being fully informed of the true party-in-interest or corporate structure.
 8. On information and belief, Defendants used dissolved SHADY OAKS MHP LLC's standing to sue for repossession of homes belonging to other tenants via a separate Circuit Court case (2025-000509-CZ).
 9. These actions demonstrate a pattern of concealment, deception, and abuse of the judicial process to strip property rights from tenants while shielding true ownership.
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COUNTS

Count I: Fraud upon the Court (MCR 2.612(C)(3))

1. Defendants concealed material facts regarding corporate status and ownership.
2. Plaintiff relied upon the belief that SHADY OAKS PARK MHP LLC had lawful authority and was the true party in interest.
3. Fraudulent misrepresentations and omissions justify vacating the eviction judgment.

Count II: Retaliatory Eviction (MCL 600.5775)

1. Plaintiff made formal complaints regarding sewage issues and record inaccuracies prior to the eviction.
2. Defendants retaliated with a baseless increase in rent and eviction threats.

Count III: Deceptive Trade Practice / Coercion

1. The lease was obtained under economic duress.
2. Defendants misrepresented legal identity and charged improper fees.

Count IV: Declaratory and Injunctive Relief (MCR 3.310)

1. Plaintiff seeks immediate injunctive relief to stay any further enforcement.
 2. Plaintiff seeks a declaratory judgment that the lease and eviction were procedurally and legally defective.
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PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests this Honorable Court:

- A. Vacate the eviction judgment entered in 60th District Court due to fraud, misrepresentation, and improper entity filing;
 - B. Declare the lease void ab initio due to coercion and misrepresentation;
 - C. Award compensatory damages including housing disruption, storage fees, legal costs, and emotional distress;
 - D. Enjoin all Defendants from initiating or continuing any enforcement actions during this litigation;
 - E. Award costs, attorney fees, and such other relief as the Court deems just and proper.
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Respectfully submitted,

HOA MI RETAIL HOMES, LLC
By: Andrew Pigors, Authorized Representative
1977 Whitehall Rd., Lot 17
Muskegon, MI 49445
[Signature block aligned to court form formatting]

Dated: [Insert Date]

VERIFICATION

I declare under MCR 2.114(B) that the foregoing statements are true to the best of my knowledge, information, and belief.

Signed: ____

Andrew Pigors

Dated: ____